CLIENT GUIDE · APRIL 20, 2026

The CAPE Portal Is Live. Here's What It Does, What It Doesn't, and Why You Still Need Legal Counsel.

CBP launched the CAPE refund portal today. This guide explains the system, its limitations, and what's at stake.

WHAT IS CAPE?

Consolidated Administration and Processing of Entries

CAPE is CBP's new electronic tool inside the ACE Portal that lets importers and customs brokers submit IEEPA tariff refund claims. Instead of processing refunds entry-by-entry, CAPE consolidates claims and issues a single ACH payment per importer grouped by liquidation date.

Filers upload a CSV file listing entry numbers. CBP validates the entries, removes the IEEPA Chapter 99 tariff codes, recalculates duties, and issues a refund including interest. Phase 1 launched April 20, 2026 at 8:00 AM EST.

~$127B
ESTIMATED ELIGIBLE IN PHASE 1

56,000+
IMPORTERS REGISTERED AS OF APR 9

60-90 Days
ESTIMATED REFUND TIMELINE

9,999
MAX ENTRIES PER DECLARATION

What Phase 1 Covers

ELIGIBLE ENTRIES

Two Categories Only

(1) Unliquidated entries: entries CBP has not yet finalized, which is most entries from the last 10-12 months. (2) Entries liquidated within the past 80 days: entries recently finalized by CBP still within the voluntary reliquidation window. CBP estimates these two categories account for approximately 82% of all IEEPA duty payments, or roughly $127 billion.

What Phase 1 Does NOT Cover

EXCLUDED FROM PHASE 1

These Entries Cannot Be Filed Through CAPE Today

Entries liquidated more than 80 days ago (even if within the 180-day protest window). Entries with open protests. Entries flagged for reconciliation. Entries subject to drawback claims. AD/CVD entries with pending Commerce Department liquidation instructions. Entries where a surety paid the IEEPA duties. Entries not filed in ACE. Finally liquidated entries past the 180-day protest window. No timeline has been published for Phase 2.

CRITICAL WARNING

CAPE Does Not Pause Your Per-Entry Deadlines

The 180-day protest deadline under 19 U.S.C. § 1514 continues to run regardless of whether CAPE processes your entry. Entries approaching that deadline that fall outside Phase 1 must be protested now or the refund right is lost permanently. CAPE does not reopen that door. Every day that passes without filing moves additional entries out of eligibility.

IF CAPE DOESN'T COVER YOUR ENTRIES

The Court of International Trade Is the Only Path

CAPE Phase 1 explicitly excludes finally liquidated entries. CBP has stated it cannot include them without delaying the entire system. No timeline has been published for Phase 2 or beyond. For these entries, the only legal path to recovery is filing suit at the U.S. Court of International Trade (CIT).

Over 1,000 importers have already filed CIT cases to preserve their refund rights. The lead case (Euro-Notions Florida v. United States, Court No. 25-595) is supervising CBP's entire CAPE development. Only attorneys can represent business entities in federal court. The outside CIT filing deadline is approximately February 2027, which is less than 10 months away. Importers who wait for CAPE to "maybe" cover their entries in a future phase risk running out of time to file at CIT as a backup.

Four CAPE Traps That Can Cost You Money

TRAP 1

One Shot Per Entry. No Amendments.

Once a CAPE Declaration is accepted, it cannot be amended. Any entry already on an accepted declaration cannot be resubmitted on another declaration. If you file with errors or missing entries, you don't get a second chance on those entries. Period.

TRAP 2

One Bad Entry Can Reject the Entire Declaration

If any entry on your declaration doesn't qualify (wrong entry type, liquidated beyond 80 days, not actually IEEPA-paid), CBP may reject the entire declaration, not just the bad line. Every single entry number must be verified before submission.

TRAP 3

Tariff Stacking: Only IEEPA Is Refundable

Most entries carry layered tariffs: IEEPA, Section 301 (China), Section 232 (steel/aluminum), Section 122, and MFN duties. CAPE only removes the IEEPA Chapter 99 codes. Refunds are also subject to entry netting under 19 CFR 159.1, meaning outstanding non-IEEPA duties are deducted. Without entry-level HTS analysis, importers risk overclaiming (triggering a compliance review) or underclaiming (leaving money on the table).

TRAP 4

CBP Scrutiny on the Back End

CAPE is designed to make intake easy. But nothing in CBP's guidance suggests they are relaxing scrutiny on the back end. Importers who changed sourcing, reclassified goods, or adjusted declared values during the tariff period are at risk of triggering compliance reviews, audits, penalties, or offset claims against their refund. Filing without a compliance review first is filing blind.

Why Legal Counsel Is Still Critical

01

Deadline Monitoring Across Hundreds or Thousands of Entries

Each entry has its own liquidation date and its own 180-day protest clock. For importers with large volumes, tracking which entries qualify for Phase 1, which need protests filed now, and which are waiting for Phase 2 is a full-time compliance exercise. Miss one deadline and that entry's refund is gone permanently.

02

Cross-Broker Data Reconciliation

Many importers used multiple customs brokers over the tariff period. Entry data is scattered across different systems and formats. A clean CAPE Declaration requires reconciling all of it into a single, verified dataset. Errors in entry numbers, liquidation status, or HTS codes result in rejected declarations with no option to amend.

03

Compliance Review Before Filing

CAPE does not review your compliance history before you file. If your entries contain classification errors, valuation adjustments, or sourcing changes from the tariff period, filing through CAPE without a compliance review first can trigger CBP scrutiny that costs more than the refund is worth. Attorneys review compliance before anything is submitted.

04

Government Offset Defense

CBP may reduce IEEPA refunds by netting them against outstanding duties under Section 301 or Section 232 per 19 CFR 159.1. Self-filers have no mechanism to challenge offsets. Attorneys actively defend against offset attempts and preserve the full refund amount owed to the client.

05

CIT Litigation for Entries Outside CAPE

Finally liquidated entries, complex AD/CVD entries, and entries excluded from Phase 1 may never be covered by CAPE. The only path for these refunds is filing suit at the U.S. Court of International Trade. Only attorneys can represent importers in federal court. Over 1,000 cases have already been filed. The outside CIT deadline is approximately February 2027.

ATTORNEY-CLIENT PRIVILEGE

Only a Lawyer Can Protect What You Disclose

Many importers made sourcing, classification, or valuation decisions during the tariff period that created compliance risk. Some importers are telling us they deliberately reclassified goods to reduce tariff exposure. That is a conversation you can only have with a lawyer.

If those same facts are disclosed to a non-attorney consultant, customs broker, or filing service, they become discoverable by CBP and can be used against you. Attorney-client privilege exists specifically to protect these conversations. A consultant has no privilege. What you tell them can become evidence.

BOTTOM LINE

CAPE Is a Filing Tool. Your Refund Strategy Is Not a CSV Upload.

The consultation with our experienced trade attorneys costs you nothing. You'll get a professional assessment of your specific situation, your estimated refund amount, and a clear explanation of the process and timeline. No obligation. No pressure. Just information from a team that has recovered significant amounts for business owners across tax controversy and regulatory recovery matters.

If you choose to move forward, the entire engagement is contingency-based. **You pay nothing unless we put money back in your account.** Costs and expenses may apply.

CAPE makes submission easier. It does not make recovery simple. The importers who recover the most, the fastest, with the least risk, are the ones with the right legal team behind them. **The risk of going it alone is real. The cost of working with legal counsel is zero unless it works.**

Schedule Your Free Consultation

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